

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 14
JUDICIAL OFFICER: KIRK ATHANASIOU
HEARING DATE: 07/07/2026

For matters where an appearance is required, the parties should appear by Zoom unless told to appear by another method. For all other matters, if argument is requested appearances may be in person or by Zoom.

Please email Dept14@contracosta.courts.ca.gov and opposing counsel by 4:00 p.m. if oral argument is requested, the requesting party shall specify the issues to be argued.

Zoom hearing information

<https://contracosta-courts-ca.zoomgov.com/j/16103009385?pwd=TjFZRDBnNkVQRlV0Znhvai9qT05tZz09#success>

Courtroom Clerk's Session

1. 9:00 AM CASE NUMBER: L25-04442

CASE NAME: CAPITAL ONE N.A. VS. JAY POOVAKAN

MOTION HEARING/ MINUTE ORDER

FILED BY: CAPITAL ONE N.A.

TENTATIVE RULING:

Plaintiff filed a Motion to Vacate Dismissal and Enter Judgment. They filed an initial Motion, followed by an Amended Motion. Both were scheduled for hearing on 4/14/26.

The Defendant has not filed a Response.

On 4/14/26, this court found that Plaintiff failed to properly notice Defendant of the Motion and hearing, and continued the matter to 7/7/26. This court also ordered Plaintiff to serve Defendant with notice of the Motion, as well with notice of the new hearing.

As of this writing, Plaintiff has not filed any proof reflecting that they have noticed Defendant, either of the Motion, or of the hearing.

Disposition

This will be dropped.

Law & Motion

2. 9:00 AM CASE NUMBER: L22-04445
CASE NAME: GALT ADVOCACY, LLC VS. KENDRA SULLIVAN
MTN TO SET ASIDE JUDGMENT FILED BY DEF. ON 04/01/2026
FILED BY: SULLIVAN, KENDRA
***TENTATIVE RULING**

Defendant has filed a Motion to Set Aside Judgment. The Motion is unopposed, however, there is no evidence to suggest that Defendant served Plaintiff with notice of the Motion of the hearing.

Disposition

This Motion will be continued to 9/6/26, 9am.

Court will draw Order.

Defendant to notify Plaintiff of Motion and hearing.

3. 9:00 AM CASE NUMBER: L23-00923
CASE NAME: CREDITORS ADJUSTMENT BUREAU, INC. VS. DOUGLAS FATANI
MOTION FOR ORD ATTACH THE SPOUSAL WAGE EARNINGS & OTHER ASSETS OF EVA I. AHOKOVI
FILED BY PLTF. ON 03/25/2026
FILED BY:
TENTATIVE RULING:

Plaintiff has filed a Motion to attach to the spousal earning of Eva Aholkovi.

The Motion is unopposed.

Plaintiff mailed notice of the Motion and hearing to an address for Defendant and Ms. Aholkovi at an address where Defendant was personally served with process.

Background

On 11/14/23, Notice of Entry of Judgment was filed in Contra Costa County, reflecting a money judgment after default against Defendant.

Plaintiff, in the exhibits to their Motion, provided evidence that Ms. Aholkovi is the spouse of Defendant. Exhibit One reflected an auto loan application in which both Defendant and Ms. Aholkovi applied as co-applicants and listed the same residential address and indicated they were the homeowner. Exhibit Two reflects an online search indicating that the two parties are married.

Analysis

Section 910 of the Family Code renders the community estate liable for the debt incurred by a spouse during marriage. Section 695.020 of the Code of Civil Procedure merely reinforces that this principle is applicable in civil matters, stating that "Community property is subject to enforcement of a money

judgment as provided in the Family Code.” Finally, it does not appear that the judgment creditor must join the spouse of a judgment debtor to the underlying lawsuit. Section 706.109 of the Code of Civil Procedure only requires a noticed motion.

By a preponderance of the evidence, this court finds that Ms. Aholkovi was properly noticed of this Motion. What’s more, this court finds that Ms. Aholkovi is the spouse of Defendant, and that her earnings are properly subject to attachment as community property.

Disposition

Plaintiff’s Motion is granted.

Plaintiff to file Order and provide notice of Order to Defendant.

**4. 9:00 AM CASE NUMBER: L24-03277
CASE NAME: WELLS FARGO BANK, N.A. VS. JUAN CANJURA**

FILED BY: WELLS FARGO BANK, N.A.

TENTATIVE RULING:

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

Analysis

Mail service was completed at an address for the Defendant where he was personally served with notice of the Summons and Complaint.

Though Defendant never filed an Answer, he did enter into a Stipulation with Plaintiff on this very matter, showing, by a preponderance of the evidence, that he was aware of this litigation. Defendant has made no effort to file a change of address with the court, nor indicate in any other way that the mailing address listed in the attachment to the Complaint is incorrect. Thus, the court finds that Defendant was properly noticed of this Motion.

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$6,682.46, plus costs, and less any credits for payments received.

The agreement was filed with the court.

The case was then dismissed.

The Defendant made payments of \$2,355.46.

Costs are \$300.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$4,627.

Plaintiff to file order on Motion, as well as submit Judgment.

5. 9:00 AM CASE NUMBER: L24-05503
CASE NAME: TRUIST BANK, IN SUCCESSOR BY MERGER TO SUNTRUST BANK VS. MARIA QUILARIO
MOTION FOR ENTERING JUDGMENT PURSUANT TO DEF DEFAULT UNDER SETTLEMENT FILED BY
PLN ON 4/2/26
FILED BY: TRUIST BANK, IN SUCCESSOR BY MERGER TO SUNTRUST BANK

TENTATIVE RULING:

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation, along with a Declaration. The Motion and its supporting documents are timely.

This Motion is unopposed.

A Notice of Conditional Settlement was filed on 10/24/24, but no dismissal was ever filed with the court.

Analysis

Mail service was completed at an address where Defendant was personally served with process. Though Defendant never filed an Answer, she did enter into a Stipulation with Plaintiff on this very matter, showing, by a preponderance of the evidence, that she was aware of this litigation. Defendant has made no effort to file a change of address with the court, nor indicate in any other way that the mailing address listed on the Complaint is incorrect. Thus, the court finds that Defendant was properly noticed of this Motion.

The parties entered into a CCP 664.6 agreement, included in the Declaration, where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$29,647.59, plus costs, less any credits for

payments received.

The Defendant made payments of \$1,200.

Costs are \$513.95. An accounting of the costs was included in the Declaration.

The court finds that since the case was never dismissed, there is no judgment to set aside.

Disposition

Plaintiff's Motion is granted in that Judgment will be entered (There was no judgment to set aside prior to today's ruling). Judgment will be entered in the amount of \$28,447.59.

Plaintiff to file order on Motion, as well as submit Judgment.

6. 9:00 AM CASE NUMBER: L25-00091

CASE NAME: WELLS FARGO BANK, NA VS. MARLIN THROWER

**PLAINTIFF'S NOTICE OF MOTION AND MOTION FOR JUDGMENT ON THE PLEADINGS;
FILED BY: WELLS FARGO BANK, NA**

TENTATIVE RULING:

Plaintiff filed a Motion for Judgment on the Pleadings. The motion was timely served by mail on the address for Defendant provided in the Answer.

The Motion is unopposed.

Background

On 4/7/26, the court granted Plaintiff's motion to deem matters true those requested in Plaintiff's Request for Admissions. All requests for admission, provided in the declaration filed 12/8/25, were deemed to be true by the court.

The court takes judicial notice of the Complaint, the Order on the motion to deem matters admitted, as well as the declaration filed by the Plaintiff on 12/8/25.

Analysis

A motion for judgment on the pleadings may be brought by a plaintiff where the complaint states facts sufficient to constitute a cause or causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint. Code Civ. Proc. § 438(c); see Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2024) ("Rutter Civ. Pro.") § 7:290. The grounds for a motion for judgment on the pleadings must appear on the face of the pleadings or be based on

facts that a court may judicially notice. Civ. Proc. § 438(d); Rutter Civ. Pro., § 7:291. Matters that may be judicially noticed include a party's admissions or concessions which cannot reasonably be controverted. *Pang v. Beverly Hospital, Inc.* (2000) 79 Cal.App.4th 986, 989-990.

Plaintiff's Complaint alleges Breach of Contract as the cause of action, based on the allegation that Defendant became indebted in the amount of \$8,732.31, on a credit card account.

Defendant's Answer denies the allegations of the Complaint and states various affirmative defenses.

Later, Plaintiff filed a motion to deem the truth of matters admitted in a set of Request for Admissions (the "RFAs") served on Defendant which was granted by the court (the "Deemed Admitted Order"). The Court takes judicial notice of the Deemed Admitted Order and the underlying court filings in connection with the Deemed Admitted Order.

Based upon the Deemed Admitted Order, it is evident that Defendant has been deemed to admit to the fact of the subject debt and the amount owing, \$8,732.31.

Those admissions are binding upon Defendant for purposes of a motion for judgment on the pleadings. *Myers v. Trendwest Resorts, Inc.* (2009) 178 Cal.App.4th 735, 746 ("Judicial admissions may be made in a pleading, by stipulation during trial, or by response to request for admission.").

Disposition

The Court finds and orders as follows:

1. The Motion for Judgment on the Pleadings is GRANTED.
2. Plaintiff shall file Order and serve copy on Defendant.

7. 9:00 AM CASE NUMBER: L25-01777

CASE NAME: CAPITAL ONE N.A. VS. ALBA VIVEROS

NOTICE OF MOTION AND MOTION TO VACATE DISMISSAL AND ENTER JUDGMENT UNDER TERMS OF STIPULATED SETTLEMENT;

FILED BY: CAPITAL ONE N.A.

***TENTATIVE RULING**

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation.

The Motion and its supporting documents are timely.

This Motion is unopposed.

However, there is no Answer in the matter, and the address where Defendant was personally served with process is different than the mailing address that the Plaintiff used to provide notice of this Motion.

There is no evidence to suggest that Defendant resides at the address listed under the proof of service for this Motion.

The court does not find that Defendant was properly noticed of this Motion.

Disposition

The Motion will be continue to 9/6/26, 9am.

Plaintiff to provide notice of the Motion and the hearing to Defendant.

Plaintiff to file Order.

**8. 9:00 AM CASE NUMBER: L25-05676
CASE NAME: JULIE SCHINDLER VS. STEPHEN ATWATER
AND NTC OF MTC FURTHER RESPONSES
FILED BY: SCHINDLER, JULIE A M**

TENTATIVE RULING:

This Motion has been continued to 8/11.26, 9am.

Court will provide written notice to both parties.

**9. 9:00 AM CASE NUMBER: L25-07459
CASE NAME: CAPITAL ONE, N.A., SUCCESSOR BY MERGER TO DISCOVER BANK VS. YOLONDA
HARDY
MOTION TO BE RELIEVED AS COUNSEL FILED BY DEF ON 3/24/26
FILED BY: HARDY, YOLONDA**

TENTATIVE RULING:

Counsel for Defendant filed a Motion to be relieved, along with exhibits and a Declaration.

Notice was provided to the Defendant by mail at the address where Defendant was personally served with process.

The Motion is unopposed.

Background

The court has reviewed the Declaration and Exhibits, and, since they reflect on privileged communications, will not provide any detail in this ruling.

After review, this court finds good cause to permit Counsel to withdraw.

Disposition

Counsel's Motion to Withdraw is granted.

Counsel to file Order.

Counsel to file substitution of attorney within 10 calendar days of today, 7/7/26.

10. 9:00 AM CASE NUMBER: L25-10993

CASE NAME: TD BANK USA N.A. VS. ELLASTINE BARKSDALE

MTN TO SET ASIDE DISMISSAL AND ENTER JDGT UNDER STIP. FILED BY PLTF. ON 03/27/2026

FILED BY: TD BANK USA N.A.

TENTATIVE RULING:

Background

Plaintiff filed an amended Motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

Analysis

Mail service was completed at an address for the Defendant where she was personally served with notice of the Summons and Complaint.

Though Defendant never filed an Answer, she did enter into a Stipulation with Plaintiff on this very matter, showing, by a preponderance of the evidence, that she was aware of this litigation. Defendant has made no effort to file a change of address with the court, nor indicate in any other way that the mailing address listed in the attachment to the Complaint is incorrect. Thus, the court finds that Defendant was properly noticed of this Motion.

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$2,532, plus costs, and less any credits for payments received.

The agreement was filed with the court.

The case was then dismissed.

The Defendant made payments of \$200.20.

Costs are \$583.61.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$2,915.61.

Plaintiff to file order on Motion, as well as submit Judgment.

11. 9:00 AM CASE NUMBER: L25-12176
CASE NAME: VELOCITY INVESTMENTS, LLC VS. BWERANI BROWN
SET ASIDE DEFAULT AND DEFAULT JUDGMENT, IF ENTERED
FILED BY: BROWN, BWERANI
***TENTATIVE RULING**

Defendant filed a Motion to Set Aside a Default Judgment, on 4/3/26.

There is no evidence that Defendant served notice of the Motion or of the hearing.

Disposition

Motion will be continued to 9/6/26, 9am.

Defendant to provide proper notice of the Motion and of the date of hearing to Plaintiff.

Court to file Order.

12. 9:00 AM CASE NUMBER: L25-12428
CASE NAME: VAN DE POEL & LEVY LLP VS. ANIL YADAV
MTN FOR ORDER AUTH ALT SERV OF SUMMONS ON DEF. ANIL YADAV FILED BY PLTF. ON
03/27/2026
FILED BY: VAN DE POEL & LEVY LLP
TENTATIVE RULING:

Plaintiff to submit this request in the efile queue. This will be dropped.

13. 9:00 AM CASE NUMBER: L25-12481
CASE NAME: VAN DE POEL & LEVY LLP VS. ANIL YADAV
MOTION FOR ORDER AUTH ALT SERV OF SUMMONS ON DEF. ANIL YADAV PURSUANT TO CCP
413.30 FILED BY PLTF. ON 03/24/2026
FILED BY: VAN DE POEL & LEVY LLP
TENTATIVE RULING:

Plaintiff to submit this request in the efile queue. This will be dropped.

14. 9:00 AM CASE NUMBER: L25-14301

CASE NAME: WELLS FARGO BANK, N.A. VS. MARK GONZALES

MOTION TO DEEM REQ FOR ADMISSIONS ADMITTED FILED BY PLN ON 3/30/26

FILED BY: WELLS FARGO BANK, N.A.

TENTATIVE RULING:

Background

Plaintiff filed a Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted (Motion), along with an accompanying Declaration.

Plaintiff attached the particular facts at issue, numbered One through Eleven and entitled, "Set One," in Exhibit A of their Declaration, as well as proof that they served Defendant with the discovery request, and declared that Defendant never responded to the request.

Plaintiff attached a proof of service of this Motion, indicating mail service to Defendant at the address listed on Defendant's Answer.

No response has been filed by the Defendant.

Analysis

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve, before the hearing, a *substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.

The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777. A monetary sanction is mandatory. See Code of Civ. Proc. Section 2033.280(c).

Disposition

The court grants Plaintiff's Motion.

The Facts at issue in Exhibit A of Plaintiff's moving papers shall be deemed admitted.

Plaintiff to draw and file Order.

15. 9:00 AM CASE NUMBER: L26-00601
CASE NAME: CAPITAL ONE, N.A. VS. WILLIAM L SABA

FILED BY:

TENTATIVE RULING:

Counsel filed a Motion to be Relieved.

There is no evidence of service on the Defendant.

No declaration was provided.

Disposition

Counsel for Defendant to appear on 7/7/26, 9am (zoom is permitted), to provide proof of service, as well as to provide reasons for withdrawal in camera.

16. 9:00 AM CASE NUMBER: L26-04380
CASE NAME: PETITION OF: JACK WAKILEH
PET. FOR RELASE OF PROPERTY. MECHANIC'S LIEN

FILED BY:

TENTATIVE RULING:

Petitioner filed a Petition for the Release of a Mechanic's Lien, along with a Declaration, on 5/7/26. Both documents were personally served on the Respondent.

The Petition is unopposed.

Petitioner seeks the release of the Mechanic's Lien on the property at 3784 Mosswood Dr., in Lafayette, as well as attorneys' fees in the amount of \$5,812.

Background

The Petition alleges that Respondent filed a Mechanic's Lien on the property for construction work, and that the Lien was recorded on 12/18/25. Petitioner further alleges that Respondent never filed an action on the lien after the recording. The deadline for filing an action was 3/18/26.

Petitioner sent several letters to Respondent in an attempt to resolve the matter, but also to notify Respondent of Petitioner's intent to file the Petition if Respondent failed to remove the lien. The latter notification occurred on 3/20/26.

There was no resolution, and the lien remained.

Petitioner provided an accounting of the hours spent on this matter and the fees incurred.

Analysis

California Civil Code Section 8460(a) provides that “The claimant shall commence an action to enforce a lien within 90 days after recordation of the claim of lien.” If this does not occur, the lien expires.

Section 8482 of the Civil Code requires that the Petitioner demand that the Respondent release the lien with notice of at least 10 days before filing the Petition.

Finally, Section 8488 of the Civil Code entitles the prevailing party to recover expenses for attorney fees.

In the instant matter, there is no evidence to controvert the claim that Respondent failed to pursue an action on the lien. Nor is there any evidence to suggest that Respondent withdrew the lien after the request from Petition.

What’s more, this court finds that both the number of attorney hours spent on the case as well as the hourly rate charged for this work are reasonable.

Disposition

Petition is granted.

Property is to be released from the Mechanic’s Lien forthwith.

Attorneys’ fees are awarded to Petitioner in the amount of \$5,812.

Petitioner to file Order and provide notice to Respondent.

Courtroom Clerk's Session

17. 1:30 PM CASE NUMBER: RS26-0122
CASE NAME: ANDREW SEHVANI VS. JOSHUA THOMPSON
JURY TRIAL
FILED BY:
TENTATIVE RULING: